

To:
The Insurance Ombudsman – Noida
Office of the Insurance Ombudsman
6th Floor, Jeevan Bhawan, Phase-II,
Nawal Kishore Road, Hazratganj,
Lucknow – 226001
Email: bimalokpal.lucknow@cioins.co.in

Date: 12 July 2025

Subject: Formal Complaint Against ACKO General Insurance for Wrongful Rejection of Health Claim No. 25062100350/1 – Request for Redressal

Respected Sir/Madam,

I, Vikas Gandhi, hereby submit this formal complaint against ACKO General Insurance for unjustly rejecting my genuine health insurance claim. The company has violated the principles of fair insurance practice and policy interpretation. Below are the detailed facts and evidences substantiating my grievance:

✓ 1. Claim Details:

- Policy Holder Name: Vikas Gandhi
- Policy No.: ASHP202400001607
- Claim No.: 25062100350/1
- Date of Admission: 20-June-2025
- Date of Discharge: 21-June-2025
- Diagnosis: Tight Phimosis with Balanitis with Meatal Stenosis
- Procedure Done: Circumcision + Meatoplasty

👤 2. Nature of Medical Condition:

- The condition was acute, painful, and medically emergent, involving painful urination and inflammation.
- It was not cosmetic or elective in nature.
- The surgery was advised by the treating doctor and conducted with due urgency.

⚠ 3. Policy Misinterpretation by ACKO:

- ACKO denied the claim stating it falls under Clause 4.1.2 - Specific Illnesses with a 2-year waiting period.
- However, nowhere in the listed illnesses under Clause 4.1.2 or the Annexure is "Phimosis", "Balanitis", or "Meatal Stenosis" mentioned.
- Thus, applying this clause to an unrelated and unlisted condition is factually and contractually incorrect.

 4. No Pre-existing Condition or Disclosure Error:

- The only declared condition in the Proposal Form was obesity.
- No past or present diagnosis or hospitalization related to urology was declared or existed.
- The disease occurred post-policy inception and was new and unanticipated.

 5. Policy Status and Premium Compliance:

- I have paid all premiums on time up to June 2025.
- The policy was fully active and valid on the date of hospitalization.
- Hence, there is no reason to deny processing based on policy lapsation or default.

 6. Coverage Clauses Favor My Claim:

- The policy clearly states no permanent exclusions (page 3).
- It provides for hospitalization, day care surgeries, and 60/120 days of pre/post hospitalization.
- This was a legitimate in-patient procedure done for relief from urological obstruction.

 7. Repeated Unjust Rejection by ACKO:

- After my detailed written reply citing all clauses and facts, ACKO still rejected my claim.
- Their response remained generic and unsubstantiated.
- They ignored specific points, especially the fact that the diagnosis is not listed under 2-year waiting diseases.

 8. Violation of IRDAI Guidelines:

- IRDAI mandates that insurers must assess claims fairly, transparently, and in favor of insured in case of ambiguity.
- ACKO's misapplication of an unrelated clause violates this consumer protection spirit.

 9. Biopsy Report Confirms Medical Necessity:

- I have also attached the Biopsy Report conducted post-surgery, which confirms the clinical seriousness and validates the medical necessity of the treatment.
- This report further negates the claim that the procedure was elective or avoidable.

 10. Relief Sought:

I kindly request the Hon'ble Ombudsman to:

- Direct ACKO to release the claim amount of ₹37,358 along with applicable interest.
- Direct ACKO to pay an additional compensation of ₹10,000 for mental agony, harassment, and avoidable delay despite clear medical urgency and policy compliance.
- Issue advisories to ACKO against misuse of clause 4.1.2 in unrelated illnesses.
- Impose any disciplinary recommendations necessary to uphold policyholder rights.

 11. Enclosed Documents:

1. Copy of Policy Document
2. Copy of Proposal Form
3. ACKO's Claim Rejection Letter(s)
4. My Written Reply to ACKO (Detailed Rebuttal)
5. Hospital Discharge Summary
6. Doctor's Advice / Prescription
7. Biopsy Report
8. Hospital Bills (with breakup of charges)
9. ID Proof (Aadhaar/PAN)
10. All relevant correspondence with ACKO

I declare that the information submitted here is true to the best of my knowledge and that I have first approached the insurer (ACKO) with all due effort to resolve this dispute. Since no just resolution has occurred, I now seek your kind intervention.

Thank you for your time and consideration.

Sincerely,

Vikas Gandhi

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